

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUNP031612: ANNETTE JAQUEZ vs TOPPERS PIZZA PLACE, et al.

09/02/2026 in Department 40

Motion for Leave to File Second Amended Complaint

Motion: Plaintiff's Motion for Leave to Amend Complaint and File Second Amended Complaint (*unopposed*).

Tentative Ruling:

Plaintiff's Motion for Leave to Amend Complaint and File Second Amended Complaint is GRANTED.

Plaintiff may file and serve a Second Amended Complaint within 10 days of this ruling.

Background: The Complaint was filed on October 4, 2024, and the First Amended Complaint ("FAC") on October 28, 2025, by Plaintiff Annette Jaquez ("Plaintiff") against Defendants Toppers Pizza Place; J&S Restaurants, Inc.; Willem Jonker; Bethalyn Jonker; XUS LP; Desert Star Administrative Services, Inc; Malilija Investments Property, Inc.; Historic Lodge Development, L.P.; Ojai Banglos LP; Jonker Investment, LP; and Jonker Family (collectively "Defendants"). The FAC pleaded causes of action for (1) premises liability and (2) general negligence. The FAC alleged that on October 22, 2022, at Toppers Pizza Place at 425 Arneil Road, Camarillo, CA 93010, Defendants controlled and operated said property and allowed it to have a dangerous and hazardous condition, namely a defective bench. Defendants failed to remedy or warn patrons of the danger and as a result, Plaintiff slipped and fell at the premises, sustaining substantial injuries.

On March 11, 2026, Plaintiff filed Proofs of Service of Summons on all Defendants with the exception of Defendant Willem Jonker, who has not been served. No Defendant who has been served has appeared.

This matter is not scheduled for trial.

Discussion:

General Rules:

Code of Civil Procedure section 473, subdivision (a)(1) states: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

Code of Civil Procedure section 576 states: “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.”

“There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1081.)

“‘[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown.’ [Citation]. Statutes like section 473 are ‘construed liberally so that cases might be tried upon their merits in one trial where no prejudice to the opposing party ... is demonstrated.’ [Citation]. Further, this liberal policy applies to amendments “‘at any stage of the proceedings, up to and including trial,’” absent prejudice to the adverse party. [Citation].” (*Tung v. Chicago Title Company* (2021) 63 Cal.App.5th 734, 747.)

“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530.)

Analysis:

Plaintiff seeks to add a description of each entity Defendant under Attachment 5 to the proposed Second Amended Complaint. For example, it identifies Defendant Toppers Pizza Place, as an “[e]ntity organization form unknown,” Defendants J&S Restaurants, Inc. and Desert Star Administrative Services as a corporations, Defendant Malilija Investment Property, LLC as a limited liability company, and Defendants Xus, LP and Historic Lodge Development, LP as limited partnerships.

Plaintiff has complied with the requirements of California Rules of Court, rule 3.1324 by filing a Declaration of Pejman Rahnama which complies with said rule and has attached the proposed Second Amended Complaint. In addition, there does not appear to be any prejudice to any Defendant since no Defendant has appeared and trial has not been scheduled. Given the liberal rules for permitting the amendment, the Court grants the motion.

Plaintiff shall comply with all requirements for service of amended complaints, which may require personal service for any defendant who has not responded to a previously served complaint. Plaintiff is also cautioned that this case was filed almost two years ago and is still not at issue, nor have defaults been taken. Plaintiff risks dismissal if defendants are not timely served and defaults promptly taken if there is no timely response.